

24STCV15320 24STCV15320

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-06-24

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Case Number: 24STCV15320 Hearing Date: June 24, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE

RULING

ANTON IVCHENKO,

Plaintiff,

v.

ROMAN KURGAN, et al.,

Defendants.

Case No:

24STCV15320

Hearing Date: June 24, 2026

Calendar Number: 1

Plaintiff Anton Ivchenko ("Plaintiff") seeks default

judgment against Defendants Roman Kurgan ("Kurgan") and Askar Galimov

("Galimov") (collectively, "Defendants").

Plaintiff requests:

(1) money judgment against Kurgan in the amount of

\$118,328.80, consisting of:

(a) damages in the amount of \$106,860.76;

(b) prejudgment interest in the

amount of \$10,686.08;

(c) costs in the amount of \$781.96;

(2)

money judgment against Galimov in the amount of \$17,900.45, consisting of:

(a) \$15,562.26 in

damages (jointly and severally with Kurgan, and included in the above damages

against Kurgan);

(b) \$1,556.23 in

interest (jointly and severally with Kurgan, and included in the above interest

against Kurgan); and

(c) \$781.96 in

costs.

The Court DENIES Plaintiff's request for default judgment.

Background

This

action relates to a construction agreement between Plaintiff and defendant

Roman Kurgan ("Kurgan"). Plaintiff and Kurgan entered an oral contract whereby

Kurgan would complete construction on a property owned by Plaintiff for the

purpose of a business that Plaintiff intended to operate on the property. The

property is located at 1417 S La Brea Avenue, Los Angeles, CA 90019 (the

"Property").

On

June 20, 2024, Plaintiff filed a complaint against defendants Kurgan, Askar

Galimov ("Galimov"), and DOES 1 through 15, inclusive, alleging causes of

action for (1) Breach of Contract; (2) Conversion; (3) Failure to Obtain

Contractor's License; (4) Receipt of Stolen Property; (5) Abuse of Process; and

(6) Negligent Infliction of Emotional Distress.

The

Clerk entered default against Defendants on May 6, 2025.

On

December 3, 2025, after hearing, the Court denied Plaintiff's request for

default judgment. (12/03/25 Minute Order at p. 1.) "Entitlement to default

judgment will take substantial additional action by Plaintiff.” (Id.)

The Court ordered Plaintiff to: (1) amend the complaint to demand damages and indicated that Plaintiff will need to re-serve the amended complaint and seek default again if Defendants do not respond; (2) provide additional evidence of damages; (3) recalculate interest after updating his damages calculations; and (4) clarify whether his cost recovery of \$781.96 is being sought twice –once against each defendant – or once, jointly and severally. (12/03/25 Minute Order at p. 2.)

As of Thursday, June 18, 2026, as of 9:33 A.M., Plaintiff has neither filed an amended complaint nor filed an updated default judgment package in compliance with the Court’s December 3, 2025 order.

Legal Standard

Code of Civil Procedure, section 585 permits entry of a judgment after a Defendant has failed to timely answer after being properly served. A party seeking judgment on the default by the Court must file a mandatory Form CIV-100 Request for Court Judgment, and:

(1) Proof of service of the complaint and summons;

(2) A dismissal of

all parties against whom judgment is not sought (including Doe defendants) or

an application for separate judgment under CCP § 579, supported by a showing of

grounds for each judgment (CRC 3.1800(a)(7));

(3) A declaration

of non-military status as to the defendant (typically included in Form CIV-100)

(CRC 3.1800(a)(5));

(4) A brief summary of the case (CRC 3.1800(a)(1));

(5) Admissible

evidence supporting a prima facie case for the damages or other relief

requested (Johnson v. Stanhiser (1999)

72 Cal.App.4th 357, 361-362);

(6) Interest computations as necessary (CRC 3.1800(a)(3));

(7) A memorandum of

costs and disbursements (typically included in Form CIV-100 (CRC 3.1800(a)(4));

(8) A request for

attorney's fees if allowed by statute or by the agreement of the parties (CRC

3.1800(a)(9)), accompanied by a declaration stating that the fees were

calculated in accordance with the fee schedule as per Local Rule 3.214. Where a request for attorney fees is based on

a contractual provision the specific provision must be cited; (Local Rule

3.207); and

(9) A proposed form

of judgment (CRC 3.1800(a)(6));

(10) Where an

application for default judgment is based upon a written obligation to pay

money, the original written agreement should be submitted for cancellation (CRC

3.1806). A trial court may exercise its discretion to accept a copy where the

original document was lost or destroyed by ordering the clerk to cancel the

copy instead (Kahn v. Lasorda's Dugout, Inc. (2003) 109 Cal.App.4th

1118, 1124);

(11) Where the

plaintiff seeks damages for personal injury or wrongful death, they must serve

a statement of damages on the defendant in the same manner as a summons (Code

Civ. Proc. § 425.11, subd. (c), (d)).

(California Rules of Court, rule

3.1800.)

Pursuant to Code Civ. Proc., § 1033.5(a)(1), items are

allowable as costs under Section 1032 if they are "filing, motion, and jury

fees."

A party who defaults only admits facts that are well-pleaded

in the complaint or cross-complaint. (Molen v. Friedman (1998) 64

Cal.App.4th 1149, 1153-1154.) Thus, the complaint must state a claim for the

requested relief.

Discussion

On December 3, 2025, the Court identified numerous issues

with Plaintiff's default judgment package and ordered Plaintiff to correct such

deficiencies. (12/03/25 Minute Order at pp. 1.) To date, Plaintiff's counsel

has not filed any documents correcting the deficiencies.

Based on the foregoing, the Court DENIES Plaintiff's request

for default judgment. Plaintiff has not filed any documents correcting the

deficiencies in the Court's December 3, 2025 order. (See 12/03/25 Minute

Order.)